

**NON COMPETITIVE MEMORANDUM
FOR SIMPLIFIED ACQUISITION ACTIONS
IAW FAR 13.106-3(b)(1)**

1. **REQUIRING AGENCY** – DOJ/Bureau of Prisons, United States Penitentiary Atwater

2. **NATURE/DESCRIPTION OF ACTION BEING APPROVED** – Urgency

3. **DESCRIPTION OF SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS** Agency urgently requires the repair of Chiller #1 to maintain the mandatory temperatures for staff and inmates. Estimated value of requirement is \$23,514.00

4. **IDENTIFICATION OF STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION** – 41 U.S.C. 253; 41 U.S.C. 1901(e)

5. **DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED:**

Currently USP Atwater has a 2 York Chillers with chiller #1 currently inoperable and chiller #2 is in operation. Chiller #1 has been inoperable for an extended period due to a malfunctioning power supply which also prevented the system from properly maintaining lubrication throughout the chiller. Both chillers will require new IGV Actuators in addition to other service and maintenance requirements. In the event of a chiller failure, USP Atwater lacks redundancy and will be unable to maintain the climate conditions required for inmate living areas and the rest of the institution. USP Atwater is dependent of each of these chillers to able to bare 50% of the institutional power requirements. Additionally, they serve as a back-up in the event that a chiller goes down and requires necessary maintenance for a temporary period of time only. USP Atwater is unable to maintain the mandatory temperatures for staff and inmates with one chiller. USP Atwater will soon be experiencing hot weather temperatures and without proper cooling of the institution it could be a potential life safety concern for staff and inmates.

6. **DESCRIPTION OF EFFORTS MADE TO ENSURE THAT OFFERS ARE SOLICITED FROM AS MANY POTENTIAL SOURCES AS PRACTICABLE:**

Any future requirements that are not urgent and compelling will be competed to the maximum extent practicable in accordance with FAR part 13.

CONTRACTING OFFICER'S CERTIFICATION

I certify this justification is accurate and complete to the best of knowledge and belief.

JOHN RIDGEWAY

Digitally signed by JOHN
RIDGEWAY

Date: 2025.04.03 07:36:48 -07'00'

Contracting Officer